

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

PRESENT:

Mr. Justice Umar Ata Bandial, CJ
Mr. Justice Ijaz ul Ahsan
Mr. Justice Munib Akhtar
Mr. Justice Yahya Afridi
Mr. Justice Sayyed Mazahar Ali Akbar Naqvi
Mrs. Justice Ayesha A. Malik

Constitution Petition Nos.24 to 28 & 30 of 2023

(Trials of Civilian under the Army Act, 1952 is violative of the Constitution)

And

C.M. Appeal No. 80 of 2023 in Const. Petition Nil of 2023

(Declaration of trial of civilians under the Army Act, 1952 as unconstitutional, void and of no legal effect.)

Jawwad S. Khawaja

(in Const.P.24/2023)

Aitzaz Ahsan

(in Const.P.25/2023)

Karamat Ali and others

(in Const.P.26/2023)

Zaman Khan Vardag

(in Const.P.27/2023)

Junaid Razzaq

(in Const.P.28/2023)

Supreme Court Bar Association of Pakistan

(in Const.P.30/2023)

Imran Ahmed Khan Niazi

(in C.M. Appeal 80/2023)

Petitioner(s)

Versus

Federation of Pakistan, etc.

(in Const.Ps.24 & 27/2023)

Federation of Pakistan through the
Secretary, Ministry of Law and Justice,
Islamabad and others

(in Const.Ps.25-26, 28 & 30/2023)

Federation of Pakistan through Ministry of
Defence through its Secretary and others
(in C.M. Appeal 80/2023)

...Respondent(s)

- For the Petitioner(s) : Kh. Ahmad Hosain, ASC
(in Const.P.24/2023)
- Sardar Muhammad Latif Khan Khosa, Sr.
ASC
a/w Mr. Aitzaz Ahsan, Sr. ASC
(in Const.P.25/2023)
- Mr. Faisal Siddiqi, ASC
(in Const.P.26/2023)
- Mr. Zaman Khan Vardag, in-person
(in Const.P.27/2023) (VL Lahore)
- Mr. Salman Akram Raja, ASC
(in Const.P.28/2023)
- Mr. Abid S. Zuberi, ASC
(in Const.P.30/2023)
- Mr. Shoaib Shaheen, ASC
Mr. Ajmal Ghaffar Toor, ASC
Syed Rifaqat Hussain Shah, AOR
(in C.M. Appeal 80/23)
- For the Federation : Mr. Mansoor Usman Awan,
Attorney General for Pakistan
Ch. Aamir Rehman, Addl. AG
- For Govt.
of Balochistan : Mr. Muhammad Ayaz Swati, Addl. AG
- For Govt. of KP : Mr. Aamir Javid, AG (VL Peshawar)
Mr. Sultan Mazhar Sher Khan, Addl. AG
- For Govt. of Punjab : Mr. Khalid Ishaq, AG
Mr. Wasim Mumtaz Malik, Addl. AG
Mr. Sana Ullah Zahid, Addl. AG
- For Govt. of Sindh : Mr. Saif Ullah, Addl. AG
a/w Mr. Mohsin Shah, Focal Person
to Chief Secretary
(VL Karachi)
- For Imran Ahmed Khan : Mr. Uzair Karamat Bhandari, ASC
Niazi (Respondent No.9
in Const P No.25/2023) (VL Lahore)
- For Rana Sanaullah : Mr. Shah Khawar, ASC
(Respondent No.10 in
Const P No.25/2023)
- For Khawaja Muhammad : Nemo
Asif (Respondent No.11
in Const P No.25/2023)
- For Muhammad Shehbaz : Nemo
Sharif (Respondent No.12
in Const P No.25/2023)
- For other respondent(s) : Nemo

Date of Hearing : 01.08.2023

ORDER

Mr. Faisal Siddiqi, ASC, learned counsel for the petitioners in Constitution Petition No.26 made submissions on his CMA No.5319/2023. He prayed for the formation of a Full Court to hear the titled Constitution Petitions for the following reasons:

- i. All past cases of constitutional importance, in particular those concerning the trials of civilians in military courts, have been heard and decided by Benches comprised of 9 Judges or more.
- ii. The incumbent Government has previously failed to comply with a judgment of the Court delivered by a Bench of the same strength as present. On the other hand, till date every judgment of a Full Court has been implemented by the State. Therefore, only a Full Court can counteract the likely disregard by the Federal Government of the judgment that will be given in the present cases.
- iii. Two Hon'ble Judges of the Court, including a present Member of the Bench, have through their separate notes in these matters requested the Hon'ble Chief Justice to constitute a Full Court.

2. We have heard the various learned counsel for the petitioners regarding the request for a Full Court. They have either primarily opposed the request for a Full Court or otherwise proposed conditions to be attached thereto.

3. The Members of the Bench have deliberated on the request of Mr. Faisal Siddiqi, ASC. They consider that it will be in the interests of justice if the learned Attorney General for Pakistan is first heard before arriving at any decision on CMA

No.5319/2023. Accordingly, to come up for his submissions on
02.08.2023 at 12:00 pm.

Islamabad
01.08.2023
Naseer/Meher LC